

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSEPH M. AULT,

Plaintiff,

SUMMONS

-against-

Index No.:
Date Purchased:

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD OFFICER
VALLERY ALEXIS, SHIELD # 3522 OF HOUSING
BUREAU, INDIVIDUALLY AND IN HER OFFICIAL
CAPACITY, AND UNIDENTIFIED CITY OF NEW
YORK EMPLOYEES,

Defendants.

-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, if the complaint is not served with this summons, to serve a notice of appearance, on Plaintiffs Attorney within twenty (20) days after the service of the summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: January 21, 2014
Garden City, New York

BARKET MARION EPSTEIN & KEARON, LLP

By:



Amy Marion, Esq.
Steven B. Epstein, Esq.
Attorneys for Plaintiff
666 Old County Road-Suite 700
Garden City, N.Y. 11530
(516) 745-1500

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
New York City Law Department
Office of Corporation Counsel
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER VALLERY ALEXIS
ONE POLICE PLAZA
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSEPH M. AULT,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

Date Purchased:

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD OFFICER
VALLERY ALEXIS, SHIELD # 3522 OF HOUSING
BUREAU, INDIVIDUALLY AND IN HER OFFICIAL
CAPACITY, AND UNIDENTIFIED CITY OF NEW
YORK EMPLOYEES,

Defendants.
-----X

The Plaintiff, complaining of the defendants, by her attorney, AMY MARION, ESQ., respectfully shows to this Court and alleges that she suffered abuse and sustained injury at the hands of the above defendants.

JURISDICTION

1. The incident giving rise to this lawsuit occurred in New York County.
2. The claims against Defendants arose while Defendants were acting in their official capacity employed as New York City Police Officers in the County of New York.

PARTIES

3. Defendant City of New York is a municipality that is a political subdivision of the State of New York, was the employer of the individually named and unidentified New York City Police Department (NYPD) Police Officer Defendants and is and was at all times relevant to this complaint responsible for NYPD policies, practices, and customs as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees. Defendant City of New York is also responsible for the unidentified agents of its municipality

who are responsible for the malicious prosecution of Plaintiff.

4. Defendant and Unidentified defendants were at all times relevant to this complaint duly appointed and acting police officers of the NYPD, acting under color of law pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

5. Unidentified Defendants were also at all times relevant to this complaint duly appointed and acting agents of NYC, acting under color of law pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

STATE CLAIMS AGAINST THE CITY OF NEW YORK

6. That Notice of the Plaintiff's claims, the nature of the claims and the date of, the time when, the place where and the manner in which the claims arose were duly served upon the City of New York within ninety days of the acts giving rise to this Complaint.

7. A 50-H hearing was requested and was not held as of yet because the City agreed to postpone the hearing doing Plaintiff's pending criminal matter.

8. Due to statute of limitation concerns this action needed to be filed.

9. Plaintiff will submit to a 50-H hearing by the City.

10. That New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602 (1) (b).

STATEMENT OF FACTS

11. On October 22, 2013 at approximately 1:20 a.m. in the proximity of 9th Avenue between 9th Avenue and West 25th Street, in the County of New York, State of New York, Plaintiff was unlawfully arrested and falsely charged with Operating a Motor Vehicle While

Under the Influence of Alcohol.

12. Plaintiff was not operating a motor vehicle and thus was falsely arrested, charged, and maliciously prosecuted.

13. Plaintiff was required to return to court for over

14. a year, was forced to go to trial where he received a full acquittal on all charges.

DAMAGES

15. Plaintiff incurred physical pain and injury, mental anguish, and emotional distress.

16. Plaintiff suffered anxiety, loss of sleep, panic attacks, and emotional injury as a result of the unlawful arrest.

17. Plaintiff was required to pay for her legal expenses for the criminal prosecution and she was otherwise injured.

18. Plaintiff suffered economic and pecuniary loss and harm as a result of the defendants' conduct.

FIRST CAUSE OF ACTION

STATE LAW TORT FALSE IMPRISONMENT/FALSE ARREST

19. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

20. That the Plaintiff's right to be free from unreasonable search and seizure has been violated pursuant to Article I Section 12 of the New York New York State Constitution in that NYPD/NYC Defendants caused the arrest of the Plaintiff.

21. That the Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

22. That the said seizure and unlawful detention occurred without authority of the law

and without any legal basis or probable cause to believe that Plaintiff was in fact guilty of crimes.

23. That by reason of the unlawful seizure and false arrest, Plaintiff has been damaged as set forth above.

24. The negligence and negligent acts of the Defendants were the proximate cause of Plaintiff's injuries.

25. Plaintiff additionally relies upon the doctrine of *res ipsa loquitur*.

26. At the time and place of the occurrences herein described, the individually named Defendant officers were acting in the course and scope of their employment by the Defendant NYPD.

27. That the Defendant NYPD is liable for the acts of the individually named Defendants under the doctrine of *respondeat superior*.

28. By reason of the foregoing, Plaintiff demands compensatory damages and punitive damages against all of the Defendants.

SECOND CAUSE OF ACTION

STATE LAW TORT MALICIOUS PROSECUTION

29. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

30. That the Plaintiff's rights have been violated pursuant to Article I Section 12 of the New York New York State Constitution to be free from unreasonable search and seizure.

31. That the said acts, were caused by the defendants without any legal justification.

32. Specifically, defendants knew or in the absence of their deliberate and reckless indifference to the truth, should have known that probable cause did not exist to arrest and

prosecute Plaintiff.

33. That the said malicious prosecution was initiated by the defendants without any legal justification and clearly without any probable cause as the Plaintiff was not operating a motor vehicle.

34. That the defendants advised, instigated, encouraged, importuned and acted with such zeal as to cause the commencement and continuation of criminal proceedings against Plaintiff.

35. Defendants' false statements and false information caused the initiation of criminal proceedings against the Plaintiff.

36. That Plaintiff was arraigned on criminal charges and a criminal prosecution continued against him.

37. That the defendants provided false information, without authority of the law and without any legal basis or probable cause to believe that Plaintiff was in fact guilty of crimes.

38. The defendants' acts were shocking and were performed with deliberate and reckless disregard for the truth and with malice.

39. In fact, the charges against Plaintiff were dismissed. The prosecution was terminated in Plaintiff's favor.

40. As a direct and proximate result of defendants' actions, Plaintiff was imprisoned and was only released upon the requirement that he return to court for each and every court appearance to answer the charges.

41. Plaintiff was prosecuted for ten months, was not free to travel freely, was required to return to court for each and every court appearance or a warrant would be issued for his arrest.

42. That by reason of the malicious prosecution, Plaintiff has been damaged as set

forth above.

THIRD CAUSE OF ACTION

NEGLIGENT SUPERVISION, TRAINING, HIRING AND RETENTION

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

44. At all times hereinafter mentioned and at the time of the occurrences herein and prior thereto, the Defendants, NYC, NYPD, and unidentified officers owed a duty of care to Plaintiff to use reasonable care in the hiring, training, supervision and retention of its employees, including the individually named Defendant officers.

45. At all times hereinafter mentioned and at the time of the occurrences herein and prior thereto, the Defendants, NYC, NYPD, and unidentified officers owed a duty of care to Plaintiff to use reasonable care in the hiring, training, supervision and retention of its employees, including the individually named Defendant officers, to ensure that they properly performed their duties without unnecessarily arresting innocent people, such as the Plaintiff.

46. Upon information and belief, the Defendants, NYC, NYPD, and unidentified officers were negligent in hiring, training, retaining and supervising the individually named Defendant officers whom NYC, NYPD, and unidentified officers knew, or in the exercise of due care, should have known, were unfit to perform their duties as police officers.

47. NYC, NYPD, and unidentified officers were negligent in hiring, training, retaining and supervising the individually named Defendant officers whom NYC, NYPD, and unidentified officers knew, or in the exercise of due care, should have known, were unfit to follow and carry out decision making skills, police protocols, procedures, and/or tactics.

48. NYC, NYPD, and unidentified officers were negligent in training and supervising

the individually named Defendant officers in proper police procedures.

49. NYC, NYPD, and unidentified officers were negligent in failing to exercise proper supervision; in negligently hiring, training, retaining and otherwise supervising the individually named Defendant officers whom NYC, NYPD, and unidentified officers knew, or in the exercise of due care, should have known, did not have the proper comportment and judgment to carry out and perform their duties as police officers.

50. NYC, NYPD, and unidentified officers were negligent in failing to exercise proper supervision; in negligently hiring, training, retaining and otherwise supervising the individually named Defendant officers whom NYC, NYPD, and unidentified officers knew, or in the exercise of due care, should have known, did not have the proper comportment and judgment to follow, exercise, and employ proper police procedures and protocol.

51. Upon information and belief, the Defendants, NYC, NYPD, and unidentified officers were negligent in failing to have, use and enforce proper protocols and procedures to uncover, investigate, discharge, suspend or otherwise discipline employees including the individually named Defendant officers.

52. Defendants NYC, NYPD, and unidentified officers knew that individual officers, including the individually named Defendant officers, would confront said issues/encounters/situations in their work, namely, but not limited to, individuals who speak freely as guaranteed by the First Amendment.

53. Defendants NYC, NYPD, and unidentified officers knew that individual officers, including the individually named Defendant officers, would confront said issues/encounters/situations in their work, and that, without training, would fail to employ proper police protocols and procedures.

54. Defendants NYC, NYPD, and unidentified officers knew that individual officers, including the individually named Defendant officers, would confront said issues/encounters/situations in their work, and that, without the proper comportment, and/or judgment, and/or decision making skills would fail to employ proper police protocols and procedures.

55. Defendants NYC, NYPD, and unidentified officers were negligent, careless, reckless and deliberately indifferent in training and supervising, as and for its employees, including the individually named Defendant officers, in that the said Defendants would confront said issues/encounters/situations in their work and that, without proper training and supervision, would make wrong and incorrect decisions regarding the arrest of individuals.

56. The negligence and negligent acts of the Defendants were the proximate cause of Plaintiff's injuries.

57. Plaintiff additionally relies upon the doctrine of *res ipsa loquitur*.

58. At the time and place of the occurrences herein described, the individually named Defendant officers were acting in the course and scope of their employment by the Defendant NYPD.

59. That the Defendant NYPD is liable for the acts of the individually named Defendants under the doctrine of *respondeat superior*.

60. By reason of the foregoing, Plaintiff demands compensatory damages and punitive damages against all of the Defendants.

FOURTH CAUSE OF ACTION AS TO NEW YORK CITY DEFENDANTS

FEDERAL FALSE ARREST CLAIM

61. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and

further alleges as follows.

62. That the Plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that Plaintiff was illegally seized.

63. That the said acts, were caused by the Defendant and Unidentified Defendants without any legal justification.

64. That the Defendants caused the confinement of Plaintiff, that the Defendants intended to confine Plaintiff, that Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

65. That the said seizure and unlawful detention was caused by the Defendants acting without authority of the law and without any legal basis or probable cause to believe that Plaintiff was in fact guilty of crimes.

66. That by reason of the unlawful seizure, the Plaintiff incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, and embarrassment, and she was otherwise injured.

67. That by reason of the aforesaid, the Plaintiff has been damaged in an amount to be determined at trial and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

FIFTH CAUSE OF ACTION

FEDERAL CLAIM OF MALICIOUS PROSECUTION

68. Plaintiff hereby incorporates by reference all of the foregoing paragraphs and further alleges as follows.

69. The defendants, despite knowing that probable cause did not exist to arrest and prosecute Plaintiff the defendants acted as set forth in the previous claim to cause Plaintiff to be arrested and prosecuted. The defendants' conduct violated Plaintiff's rights pursuant to the

Fourth and Fourteenth Amendments of the United States Constitution pursuant to 42 U.S.C. § 1983.

70. Specifically, defendants knew or in the absence of their deliberate and reckless indifference to the truth, should have known that probable cause did not exist to arrest and prosecute Plaintiff.

71. That the said malicious prosecution was initiated by the defendants without any legal justification and clearly without any probable cause.

72. That the defendants advised, instigated, encouraged, importuned and acted with such zeal as to cause the commencement and continuation of criminal proceedings against Plaintiff.

73. The defendants' acts were shocking and were performed by the defendants with deliberate and clearly reckless disregard for the truth and with malice.

74. In fact, the charges against Plaintiff were dismissed. The prosecution was terminated in Plaintiff's favor.

75. As a direct and proximate result of defendants' actions, Plaintiff was wrongly prosecuted for ten months and suffered injuries and damages as set forth above.

76. That by reason of the unlawful seizure, Plaintiff incurred mental anguish, emotional distress, loss of professional opportunity, loss of income, legal expenses, loss of reputation, humiliation, indignities, embarrassment, and degradation and he was otherwise injured.

77. That by reason of the aforesaid, the Plaintiff has been damaged in a sum to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

SIXTH CAUSE OF ACTION

SUPERVISOR LIABILITY

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

79. That the Plaintiff's rights have been violated under the Fourth and Fourteenth Amendments to the United States Constitution by the Defendants who were supervisors of the officers who violated and abused Plaintiff's rights.

80. That these Defendants, who were supervisors had actual and constructive knowledge of the illegal seizure, false arrest, and malicious prosecution of Plaintiff and various torts which were being committed by their subordinates against the Plaintiff.

81. That the Defendant supervisors did cause the Plaintiff's harms by failing to remedy the patterns of illegal and false arrests and malicious prosecutions and other constitutional violations the Defendants committed after learning of them.

82. That by reason of the failure of the unidentified supervisors, Plaintiff was forced to undergo an unlawful seizure, detention and prosecution and Plaintiff incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, and embarrassment, and she was otherwise injured.

83. That by reason of the aforesaid, the Plaintiff has been damaged in a sum to be determined at trial an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

SEVENTH CAUSE OF ACTION

MONELL CLAIM

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

85. That the Plaintiff's rights have been violated under the Fourth and Fourteenth Amendments to the United States Constitution by the Defendant City of New York (NYC).

86. Defendant NYC has a policy and practice of permitting its agents to act without probable and just cause to believe that individuals have committed crimes.

87. Defendants NYC has a policy and practice of permitting its agents to act maliciously prosecute individuals without probable and just cause to believe that individuals have committed crimes.

88. Defendant NYC has failed to adequately discipline, train, supervise or otherwise direct police officers concerning the rights of citizens.

89. That by reason of the aforesaid, the Plaintiff has been damaged in a sum to be determined by a jury and an award of attorney's fees is appropriate pursuant to 42 U.S.C. §1988.

EIGHTH CAUSE OF ACTION AS TO NEW YORK CITY DEFENDANTS

FAILURE IN THEIR AFFIRMATIVE DUTY TO INTERVENE

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

91. That the Plaintiff's rights have been violated under the Fourth and Fourteenth Amendments to the United States Constitution by the individual Defendants.

92. That there exists a duty for Defendant police officers to intervene to prevent the preventable violation of civil rights taking place in their presence when there is a reasonable opportunity to do so.

93. That such opportunity existed for the Defendants in the instant case.

94. That the Defendants, by failing in their affirmative duty to intervene are responsible for the violations of the Plaintiff's Fourth and Fourteenth Amendment rights.

95. That by reason of the unlawful seizure, detention and prosecution, Plaintiff incurred physical, emotional and pecuniary harms, suffered humiliation, mental anguish, and embarrassment, and she was otherwise injured.

WHEREFORE, Plaintiff prays for relief as follows:

- A. That the Court award compensatory damages to him and against the Defendants jointly and severally, in an amount to be determined at trial;
- B. That the Court award punitive damages to her, and against all Defendants, in an amount, to be determined at trial, that will deter such conduct by Defendants in the future;
- C. For a trial by jury;
- D. For a pre-judgment and post-judgment interest and recovery of her costs; and
- E. For any and all other relief to which she may be entitled.

Dated: January 19, 2014
Garden City, New York

BARKET MARION EPSTEIN & KEARON, LLP

By: _____

Amy Marion, Esq.
Steven B. Epstein, Esq.
Attorneys for Plaintiff
666 Old County Road-Suite 700
Garden City, N.Y. 11530
(516) 745-1500

ATTORNEY'S VERIFICATION

STEVEN B. EPSTEIN, an attorney duly admitted to practice in the Courts of the State of New York, affirms the following statements to be true under the penalties of perjury:

That I am a partner in the firm of **BARKET MARION EPSTEIN & KEARON, LLP**, attorneys for the Plaintiff Joseph Ault in the within action,

That I have read the attached Complaint and knows the contents thereof and the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and that as to those matters, I believe them to be true.

That deponent's source of information and the grounds of my belief are derived from the file maintained in the normal course of business of the attorneys for the Plaintiff.

That this verification is made by deponent because the Plaintiff does not reside in the county where deponent maintains his office.



STEVEN B. EPSTEIN

Sworn to before me this
_____ day of January 19, 2015



Notary Public

LENSKA RODRIGUEZ
NOTARY PUBLIC, State of New York
No. 01RO6147462
Qualified in Suffolk County
Commission Expires June 5, 2018